

*schallo et Mareschallo hospitii sui salutem* (and recites the said chapter of the statute) & etiam [75 b] *ex gravi querelâ A. de B. accepimus, quod vos ad sectam R. ipsos ad respondendum coram vobis præfat' R. de quadam transgressione, &c. infra virgam nostram apud B. quanquam neuter eorum de eodem hospitio existat, &c. vobis mandamus quod si ita est, tunc placito illo coram vobis ulterius tenend' supersedeat' omnino ipsum B. contra formam ordinationis præd' non molestant' in aliquo, seu gravant'.* Which writ being formed upon the said statute and presently after the making of it, is a manifest proof, that the Court of the Marshalsea cannot hold plea in trespass within the verge if none of the parties are of the King's House. And it is to be observed, that where any statute prohibits any thing, a man may have a *supersedeas* in the nature of a prohibition to any Judge who shall hold plea against any statute, and this appears in many cases in the register *inter brevia de statuto* (E). It is likewise to be observed, that when any statute prohibits any thing, &c. if any one impleads another, although it be in course of a legal proceeding, yet the party grieved shall have an action upon the statute against the party who sues against the statute, (b) although the words of the statute do not give any action to the party, but that is a consequent, and a thing implied in every thing prohibited by any statute (F): and this appears by the said book of (c) 7 H. 6. 30. b. 31. a. where the party grieved had an (d) action upon this very statute, and 4 E. 4. 37. a. b. an action upon the statute of 2 (a) H. 5. c. 7. for not delivering of the libel. The Tales sive Novæ Narrationes, f. 102. a book cited and approved in 39 H. 6. The Diversity of Courts, 102. F. N. B. 241. b. a man shall have an averment in an action brought against him in the Court of the Steward and Marshal, that he was not of the King's Household at the time of the trespass or contract made; or that the plaintiff was not of the King's Household. *Vide* (b) Stanford, lib. 2. c. 5. And this point is resolved by Parliament in 15 (c) H. 6. cap. 1. where it is recited, that the Steward and Marshal of the King's House and their deputies, have held pleas of debt, detinue, and other personal pleas betwixt people which were not of the same house, making mention in their records, that the plaintiffs and defendants were of the same house, and not allowing to the parties defendants their challenges and exceptions by them alleged, that themselves or the plaintiff are not of the same house, against the laws and statutes in those cases made and provided, that they shall not be estopped by such record, &c. but the said defendants shall have their averment to say,

(E) Lord Ellesmere in his Observations p. 12. observes, "In the case of the Marshalsea, he suffereth to fall from him this novelty as a principle, viz. 'and it is to be observed, that where a statute prohibiteth any thing, a man may have a *supersedeas* in nature of a prohibition to any Judge that holdeth plea against any statute.' This rule is known not to be law, for then in the first case, may there a prohibition go out of the K. B. with *teste Edwardo Coke* to the Lord Chancellor, into the Chancery, when the style is *teste meipso*. Besides, the rule is put so indefinitely, as it comprehends no certainty, neither out of what Court such *supersedeas* should go, nor to what Judge spiritual or temporal, and in saying to any Judge, the Lord Chancellor is not excluded, nor the Lords of the Star Chamber, nor the Lord Treasurer, and the Court of Exchequer Chamber, nor the Court of Wards, nor the Court of Dutchy, so as the Chief Justice doth imply tacitly that all this may be prohibited, unto the putting in practice whereof it seemeth this case should be a leading." *Vid.* Com. Dig. Prohib. A. *Ex parte Cowan*, 3 Barn. & Ald. 123.

(b) F. N. B. 160. b. 163. a. 165. b. 166. d. 241. c. 242. a. Dalr. Sh. 121. a. 1 Bulstr. 209. 2 Inst. 55.

(F) Where a statute prohibits a thing and adds no penalty, an action lies for doing against the prohibition of that statute, but that ought to be by an action brought *tam pro Rege quam pro seipso*. *Waterhouse v. Bawde*, Cro. Jac. 134. and *vid.* Com. Dig. Action on Stat. E. 2.

(c) 6 Co. 20. b. Br. Action sur le Stat. 13. Fitz. Bar. 17.

(d) Fitz. Action sur le Stat. 35. Br. Jurisdiet. 97.

(a) 2 H. 5. cap. 3. 12 Co. 61. 13 Co. 42. 3 Bulstr. 5. 120. Reg. 58. a. Cr. Jac. 37. 388. Moor 756.

(b) Stanford Cor. lib. 2. c. 5.

(c) 1 Bulstr. 209. 123. Rast. Marshalsea 7.